

25SMCP00407 25SMCP00407

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 25SMCP00407 Hearing Date: September 2, 2026 Dept: M

CASE NAME: 605 Rexford

LLC v. Juaanes Portable Welding, et al.

CASE NO.: 25SMCP00407

HEARING DATE: 9/2/2026

MOTION: Petition to Release Mechanic's Lien (First Amended
Petition)

Legal

Standard

After a mechanic's lien has been recorded, "[t]he owner of property or the owner of any interest in property subject to a claim of lien may petition the court for an order to release the property from the claim of lien if the claimant has not commenced an action to enforce the lien within the time provided in Section 8460." (Civ. Code, § 8480(a).) (A claimant must commence an action to enforce a lien within 90 days of recording the lien, otherwise, "the claim of lien expires and is unenforceable." (Civ. Code, § 8460(a).) However, the 90-day time limit to commence an action to enforce a lien does not apply if there was an agreement to extend credit and a notice of that fact was recorded within 90 days after recordation of the claim of lien or more than 90 days after recordation of the claim of lien but before a purchaser or encumbrancer for value and in good faith acquires rights in the property. (Civ. Code, § 8460(b).) (

Civil Code section 8484 requires

that the petition for release order be verified by the petitioner and allege the following:¿

¿

(a) The date of recordation of the claim of lien. A certified copy of the claim of lien shall be attached to the petition.¿

(b) The county in which the claim of lien is recorded.¿

(c) The book and page or series number of the place in the official records where the claim of lien is recorded.¿

(d) The legal description of the property subject to the claim of lien.¿

(e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired.¿

(f) That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found.¿

(g) Whether an action to enforce the lien is pending.¿

(h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien.¿

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A property owner may not petition for a release order until they give the claimant notice demanding that the claimant execute and record a release of lien claim at least ten days before filing the petition. (Civ. Code § 8482.)

“The petitioner shall serve a copy of the petition and a notice of hearing on the claimant at least 15 days before the hearing. Service shall be made in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant as provided in Section 8108.” (Civ. Code § 8486(b).) Civil Code § 8108 provides addresses at which a respondent must be served, depending on the title of the person to be served. A claimant should be served at the address on the “claimant’s contract, preliminary notice, claim of lien, stop payment notice, or claim against a payment bond, or on the records of the Contractors’ State License Board.” (Civ. Code § 8108(e).)

The petitioner has the initial burden of producing evidence to establish the requirements of the petition and the issue of compliance with the service and date for hearing. (CCP § 8488(a).) The claimant has the burden of proof as to the validity of the lien. (Id.) The prevailing party in an action seeking a release order of a mechanic’s lien is entitled to reasonable attorney’s fees. (Civil Code § 8488(c).)

ANALYSIS

Petitioner 605 Rexford LLC petitions for an order releasing the Mechanic’s Lien recorded against the real property located at 605 N. Rexford Drive, Beverly Hills, California 90210 (the Property). Respondents Juanes Portable Welding and Deandrea Colum has not filed a response or opposition to the petition.

Petitioner demonstrates service of the First Amended Petition (“FAP”) and notice of hearing on the claimant. (Proof of Service filed on 5/27/26.)

Via the verified FAP, Petitioner shows the requirements for a release of mechanics lien. The Petition states the legal description of the property subject to the claim of lien. (FAP ¶ 1.) On March 14, 2025, Respondent recorded a claim of mechanic’s lien against the

Property in the amount of \$14,496.37. (Id., ¶ 5, Ex. A.) The petition indicates that it was recorded in the office of the County Recorder for the County of Los Angeles as instrument number 2025016418. (Id.) The Petition shows that the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so. (Id., ¶ 8, Ex. B.) The Petition indicates that no action to enforce the lien is pending and that the time to bring such an action has expired. (Id., ¶ 6.) An extension of credit has not been granted under Section 8460. (Id. ¶ 7.) The Petition verifies that the owner of the Property has not filed for relief under any laws governing bankruptcy, and there exists no other restraint to prevent Respondents from filing to foreclose the claim. (Id., ¶ 10.)

Accordingly, the petition is GRANTED.